

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #:

Date Filed: 03-18-2014

-----X
DAVE R. JOSEPH,

SUMMONS

Plaintiffs designated
NEW YORK
County of place of trial

Plaintiff,

Basis of Venue
Place of occurrence

-against-

THE CITY OF NEW YORK and P.O. JOSE RIVERA
(Badge # 26191), and P.O. "JOHN" DOE (partner of P.O. Jose Rivera)

Plaintiff's Residence

Defendants

1952 First Avenue, #12E
New York, NY 10029

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service (or thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 18, 2014

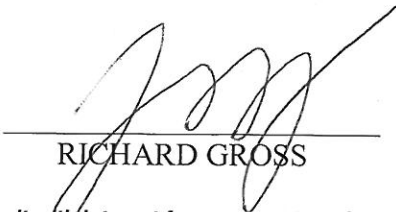
Defendants' address:

CORPORATION COUNSEL
100 Church Street
New York, New York 10007

Police Officer Jose Rivera
23rd Precinct
162 East 102nd Street
New York, New York 10029

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608-3103

Notice: The nature of this action is:
Negligence, defamation, false arrest, malicious
prosecution, intentional infliction of emotional distress
The relief sought is: Monetary damages


RICHARD GROSS

Upon failure to appear, judgment will be taken against you by default with interest from together with the costs of this action

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DAVE R. JOSEPH,

Verified Complaint
Index #:

Plaintiff,

-against-

THE CITY OF NEW YORK and P.O. JOSE RIVERA
(Badge # 26191) and P.O. "JOHN" DOE (partner of P.O. Jose Rivera)

Defendants.
----- X

Plaintiff, by his attorneys, RUBERT & GROSS, P.C., complaining of Defendants, THE CITY OF NEW YORK (hereinafter referred to as "CITY") and P.O. JOSE RIVERA (hereinafter "RIVERA") Badge # 26191 and P.O. "JOHN DOE", alleges as follows:

1. At all times hereinafter mentioned, defendant, CITY, was and still is a municipal corporation created, organized and duly existing under and by virtue of the laws of the State of New York.
2. At all times hereinafter mentioned, defendant, CITY, its agents, servants and/or employees operated, maintained, managed and controlled the New York City Police Department.
3. At all times hereinafter mentioned, defendant, RIVERA, was Police Officer in the 23rd Precinct located at 162 East 102nd Street, New York, New York.
4. At all times hereinafter mentioned, the New York City Police Department was an agency, instrumentality, department of defendant, CITY, and/or defendant, CITY, derived benefits from the activities of the New York City Police Department.

5. On September 10, 2013, plaintiff duly served a Notice of Claim upon defendants in the manner and mode required by law.

6. On November 12, 2013 Plaintiff was orally examined pursuant to General Municipal Law 50-h.

7. That sixty days (60) days have elapsed since the service of plaintiff's Notice of Claim and plaintiff's claims have not been adjusted or paid.

8. That this action is brought within one (1) year and ninety (90) days from the date of occurrence complained of herein.

9. That plaintiff has complied with all conditions precedent applicable to the instant action.

10. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

11. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "10" above as if fully set forth herein.

12. That on July 3, 2013, at approximately 5:15 p.m., while plaintiff was in his home located at 1952 First Avenue, Apartment 12E, New York, New York, he was assaulted and battered by members of the New York City Police Department.

13. That on July 3, 2013, at approximately 5:15 p.m., while plaintiff was in his home located at 1952 First Avenue, Apartment 12E, New York, New York, he was assaulted and battered by defendant, RIVERA.

14. That on July 3, 2013, at approximately 5:15 p.m., while plaintiff was in his home located at 1952 First Avenue, Apartment 12E, New York, New York, defendant, RIVERA, handcuffed, detained and otherwise injured plaintiff without cause and/or justification.

15. That on July 3, 2013, at approximately 5:15 p.m., while plaintiff was in his home located at 1952 First Avenue, Apartment 12E, New York, New York, defendant, JOHN DOE, assaulted and battered plaintiff.

16. That on July 3, 2013, at approximately 5:15 p.m., while plaintiff was in his home located at 1952 First Avenue, Apartment 12E, New York, New York, defendant, RIVERA, handcuffed, detained and otherwise injured plaintiff without cause and/or justification.

17. That all times mentioned herein, defendant, RIVERA, was acting under the color of authority, and in furtherance of his employer NYPD's interest.

18. That all times mentioned herein, defendant, JOHN DOE, was acting under the color of authority, and in furtherance of his employer NYPD's interest.

19. That the aforementioned conduct of Defendant, City's employees, including, defendant, RIVERA and JOHN DOE, was willful and wanton and the defendant acted with reckless disregard for the consequences of his actions.

20. As a result of the foregoing, plaintiff was caused to sustain personal injuries.

21. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

22. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "21" above as if fully set forth herein.

23. That defendant, RIVERA's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

24. That defendant, JOHN DOE's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

25. That defendant, RIVERA, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that they would cause such emotional distress to said plaintiff.

26. That defendant, JOHN DOE, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that they would cause such emotional distress to said plaintiff.

27. That defendant, RIVERA, acted with utter disregard of the consequences of their actions.

28. That defendant, JOHN DOE, acted with utter disregard of the consequences of their actions.

29. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

30. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

32. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "31" above as if fully set forth herein.

33. That defendant, CITY, through its agents, servants and/or employees, including RIVERA and JOHN DOE negligently performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

34. That defendant, RIVERA, negligently performed his duties in that he failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

35. That defendant, JOHN DOE, negligently performed his duties in that he failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

36. As a result of defendants' negligence, plaintiff was cause to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

37. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

38. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "37" above as if fully set forth herein.

39. That defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, including defendant, RIVERA.
40. That defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, including defendant, JOHN DOE.
41. That the actions of defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, including defendant RIVERA.
42. That the actions of defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, including defendant JOHN DOE.
43. That defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, including defendant RIVERA, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position.
44. That defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, including defendant JOHN DOE, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position.
45. That defendant, CITY, was negligent in its retention of its agents, servants and/or employees, including, RIVERA, who defendant, CITY, knew or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position in that he refused or failed to perform within the statutory and constitutional limits of this authority and misused and abused his position.
46. That defendant, CITY, was negligent in its retention of its agents, servants and/or employees, including, JOHN DOE, who defendant, CITY, knew or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position in that he

refused or failed to perform within the statutory and constitutional limits of this authority and misused and abused his position.

47. As a result of the negligence of defendant, CITY, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

48. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

49. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "48" above as if fully set forth herein.

50. On July 3, 2013 at approximately 5:15 p.m. defendant RIVERA proceeded to search plaintiff's home without a search warrant.

51. On July 3, 2013 at approximately 5:15 p.m., defendant, JOHN DOE, proceeded to search plaintiff's home without a search warrant.

52. That said warrantless search constitutes a violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Fourth and Fourteenth Amendment and the Constitution of the State of New York.

53. As a result of said civil rights violation, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

54. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

55. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "54" above as if fully set forth herein.

56. That plaintiff was assaulted and battered, without provocation to justification by defendant, RIVERA, in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Fourth and Fourteenth Amendment and the Constitution of the State of New York.

57. That plaintiff was assaulted and battered, without provocation to justification by defendant, JOHN DOE, in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Fourth and Fourteenth Amendment and the Constitution of the State of New York.

58. As a result of said civil rights violations, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

59. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

60. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "59" above as if fully set forth herein.

61. The actions of defendant, CITY, its agents, servants and/or employees heretofore described constitute an unlawful search, detention, imprisonment, assault and battery and handcuffing and were designed to and did cause specific and seriously bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

62. That the supervisors and policy making officers of defendant, CITY, and its Police Department, as a matter of policy have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

63. That defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits in the exercise of their authority, and such failure continues to this day.

64. That defendant, CITY, hired and retained in its employ certain police officers, including, but not limited to defendant, RIVERA, with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

65. That defendant, CITY, hired and retained in its employ certain police officers, including, but not limited to defendant, JOHN DOE, with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

66. That defendant, CITY, hired and retained in its employ certain police officers, including, but not limited to defendant, RIVERA, with knowledge that said police officers had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of defendant, RIVERA, and other police officers.

67. That defendant, CITY, hired and retained in its employ certain police officers, including, but not limited to defendant, JOHN DOE, with knowledge that said police officers had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of defendant, JOHN DOE, and other police officers.

68. That these policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force, in warrantless and otherwise unconstitutional entry into private homes and impermissible arrests and detention, particularly those who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

69. At all times material to this Complaint, defendants, CITY, had in effect policies, practices and customs of allowing, permitting and or ratifying police officers' warrantless searches, arrests, assaults and malicious detentions.

70. That the policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia by the following:

- a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
- b) The fact that cases where complaints have been lodged against police officers were inadequately investigated.
- c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
- d) The fact that, upon information and belief, only a small number of police officers have been or has been fired for such misconduct since 1989.

e) The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

71. That the policy makers of the Police Department and defendant, CITY, knew or should have known that defendant, RIVERA, and other police officers in the Department were violating people's Constitutional rights and that said police officers were taking actions that were shocking the conscience or otherwise violating the substantive due process rights of the people of New York City.

72. That the policy makers of the Police Department and defendant, CITY, knew or should have known that defendant, JOHN DOE, and other police officers in the Department were violating people's Constitutional rights and that said police officers were taking actions that were shocking the conscience or otherwise violating the substantive due process rights of the people of New York City.

73. That defendant, CITY, in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, defendant, CITY, and the New York City Police Department fail to impose any discipline upon the police officers guilty of abuse, either before or after the Court resolution.

74. The defendant, CITY, after the resolution of civil cases that result in verdicts or substantial settlements for victims of police misconduct, almost never reopens an investigation previously conducted.

75. That in a substantial number of cases, defendant, CITY, promotes the officers guilty of misconduct to a position of greater authority.

76. That defendant, CITY, and the New York City Police Department tolerates and encourages police officers to lie to cover up wrongful conduct as evidenced by the Mollen

Commission Report, July 7, 1994. The effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.

77. The defendant, CITY, failed to effectively screen, hire, train, supervise and discipline its police officers, including, but not limited to, defendant, RIVERA, for his propensity for violence, including excessive use of force and restraint, lack of truthfulness and for his failure to protect citizens from unconstitutional conduct of other police officers and to otherwise cause him injury and violate his federal and state constitutional rights, or to permit these actions to take place with his knowledge or consent.

78. The defendant, CITY, failed to effectively screen, hire, train, supervise and discipline its police officers, including, but not limited to, defendant, JOHN DOE, for his propensity for violence, including excessive use of force and restraint, lack of truthfulness and for his failure to protect citizens from unconstitutional conduct of other police officers and to otherwise cause him injury and violate his federal and state constitutional rights, or to permit these actions to take place with his knowledge or consent.

79. On information and belief, defendant, RIVERA, has been the subject of poor civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by plaintiff herein.

80. On information and belief, defendant, JOHN DOE, has been the subject of poor civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that defendant police officers herein

were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by plaintiff herein.

81. On information and belief, that other police officers involved in plaintiff's arrest had been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by plaintiff herein.

82 The defendant, CITY, failed to put into place and otherwise maintain an adequate structure for risk containment and stress management relative to its police officers. Inter alia, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.

83. That as a result of the foregoing conscious policies, practices, customs or usages, defendant, CITY, has permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unconstitutional behavior.

84. That such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to plaintiff herein.

85. That as a result of the foregoing, plaintiff was caused to suffer personal injuries, false arrest, false imprisonment, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

86. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

87. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "86" above as if fully set forth herein.

88. Defendants, RIVERA and JOHN DOE, failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which plaintiff was subjected despite the fact that they had opportunities to do so.

89. The individual defendants, and each of them, thereby displayed deliberate indifference to plaintiff's rights, including but not limited to plaintiff's right to be free from unreasonable and unlawful searches and seizures, right to procedural and substantive due process, and right to a fair trial.

90. That by virtue of the aforementioned acts by defendants, plaintiff was deprived of his civil rights guaranteed under the Constitution of the United States, including his right under the Fourteenth Amendments to the United States Constitution, and defendants therefore are liable to plaintiff for damages under 42 U.S.C. §1983.

91. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering, psychological and

emotional injury great humiliation, costs and expenses and suffered economic loss and other damages.

92. That defendants are sued in their individual and official capacities.

93. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

NINTH CAUSE OF ACTION

94. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "93" above as if fully set forth herein.

95. That defendants, RIVERA and JOHN DOE, under color of law, conspired with each other as well as with others, including but not limited to defendants, to reach a mutual understanding and thereafter acted to undertake a course of conduct to injure, oppress, threaten and intimidate plaintiff in the free exercise and enjoyment of the rights and privileges and equal protection of the law secured to him by the Constitution of the United States, including the rights: to be free from false arrest and false imprisonment; to be free from malicious prosecution; to associate and speak freely; to have fair and equal access to exculpatory evidence so as to be able to properly present a defense in a criminal matter.

96. That defendants, acting under color of law, were willful participants in a joint action the purpose of which was to further the purpose and goals of pressuring the true culprit of the crimes of which plaintiff was accused as well as other crimes to confess to those crimes at the expense of plaintiff who had not committed or attempted to commit any crime.

97.. That as part of the conspiracy among defendants RIVERA and JOHN DOE in furtherance of said conspiracy defendants willfully, recklessly and negligently accused plaintiff of committing a criminal act without probable cause; falsely arrested and imprisoned plaintiff;

maliciously prosecuted plaintiff; covered up wrong doing by defendants, their agents, servants and/or employees, including but not limited to the deliberate, willful, malicious and/or negligent alteration, loss and/or destruction of exculpatory evidence, the failure to present exculpatory evidence, misrepresentation of evidence; suppression of exculpatory evidence; and by submitting false police reports statements and/or testimony to support and corroborate the false charges against plaintiff.

98. As a result of the aforesaid conspiracy, plaintiffs were caused to suffer personal injuries, violation of civil and constitutional rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing with within their community.

99. By reason of the foregoing, plaintiffs demand judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

TENTH CAUSE OF ACTION

100. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "99" above as if fully set forth herein.

101. That in the event that plaintiff is successful in the prosecution of the aforesaid claim(s), plaintiff shall be a prevailing party within the meaning 42 U.S.C. §1988 and entitled to the recovery of attorneys' fees from the defendants.

102. By reason of the forgoing, the defendants became liable to plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff, DAVE R. JOSEPH, respectfully demands judgment against defendants, THE CITY OF NEW YORK, POLICE OFFICER JOSE RIVERA and POLICE OFFICER JOHN DOE, and requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee pursuant to 42 U.S.C. 1988, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
March 18, 2014

Yours, etc.

RUBERT & GROSS, P.C.

Attorneys for Plaintiff

150 Broadway Suite 712

New York, New York 10038

BY: _____

RICHARD GROSS

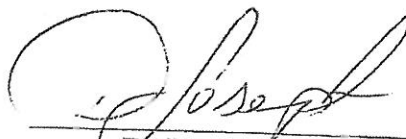
VERIFICATION

State of New York)
) ss.:
County of New York)

I, DAVE R. JOSEPH, being sworn, say:

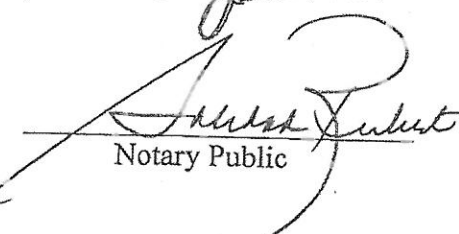
I am the plaintiff in the within action; I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to these matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

Dated: New York, New York
January 9, 2014



DAVE R. JOSEPH

Sworn to before me this
9th day of Jan, 2014



Notary Public

SOLEDAD RUBERT
Commissioner of Deeds City of N.Y.
No. 02RU463490
Qualified in Bronx County
Commission Expires 6/2/2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

DAVE R. JOSEPH,

Plaintiff,

-against-

THE CITY OF NEW YORK AND POLICE OFFICER JOSE RIVERA BADGE # 26191 AND
POLICE OFFICER "JOHN" DOE, (PARTNER OF PO JOSE RIVERA)

Defendant(s).

VERIFIED SUMMONS AND COMPLAINT

RUBERT & GROSS, P.C.

Attorneys for Plaintiff
150 Broadway Suite 712
New York, New York 10038
(212) 608-3103
